

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Casados	Team: Intake	CCRB Case #: 201310389	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 10/27/2013 11:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/27/2015	Precinct: 77		
Date/Time CV Reported Mon, 11/04/2013 2:22 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/04/2013 2:22 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Joseph Hickey	04177	928480	077 DET
2. DT3 Joseph Tillotson	05915	931330	077 DET
3. POM Jason Brunson	17542	944393	077 DET
4. SDS Egidio Gonzalez	01773	904053	DB BNHM

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Joseph Hickey	Abuse: Det. Joseph Hickey entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . DT3 Joseph Hickey	Force: Det. Joseph Hickey used physical force against § 87(2)(b)	B . Unsubstantiated
C . DT3 Joseph Hickey	Discourtesy: Det. Joseph Hickey spoke rudely to § 87(2)(b)	C . Substantiated
D . DT3 Joseph Hickey	Abuse: Det. Joseph Hickey threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . SDS Egidio Gonzalez	Abuse: Sgt. Egidio Gonzalez threatened to arrest § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On Oct. 23, 2013, Det. Joseph Hickey from the 77th Precinct Detective Squad was assigned a case about § 87(2)(b). On Oct. 27, 2013, at about 11:30 a.m., Det. Hickey and Det. Joseph Tillotson from the 77th Precinct Detective Squad went to § 87(2)(b) home located at § 87(2)(b) in Brooklyn, § 87(2)(b).

§ 87(2)(b) opened the door and an argument ensued between him and Det. Hickey. § 87(2)(g)

Once inside, Det. Hickey told § 87(2)(b) “Sit the fuck down” (**Allegation C**). § 87(2)(b) further alleged that Det. Hickey pushed him against a pool table, continued to curse at him, and threatened to arrest him (**also Allegations B and C, and Allegation D**). Det. Tillotson requested a supervisor to the location, and Sgt. Egidio Gonzalez and PO Jason Brunson, both from the 77th Precinct Detective Squad, responded. Sgt. Gonzalez allegedly threatened to arrest § 87(2)(b) (**Allegation E**). § 87(2)(b)

§ 87(2)(b) the officers left and did not arrest or summons § 87(2)(b) § 87(4-b) § 87(2)(g)

This case was originally assigned to Inv. Robert Hart. He left the agency and it was reassigned to Inv. Andrew Guinan. He left the agency and it was reassigned to the undersigned investigator on Dec. 17, 2014.

Mediation and Criminal Histories

This case was not mediation eligible. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

(encl. 18).

Civilian and Officer CCRB Histories

- Det. Hickey has been a member of the service for 13 years. There are no substantiated allegations against him and he has not been cited for other misconduct (encl. 2A-2C).
- Det. Tillotson has been a member of the service for 12 years. There are no substantiated allegations against him and he has not been cited for other misconduct (encl. 2D-2E).
- Sgt. Gonzalez has been a member of the service for 21 years. There are no substantiated allegations against him and he has not been cited for other misconduct (encl. 2F).
- PO Brunson has been a member of the service for seven years. A frisk allegation was substantiated against him in 2007, and the NYPD gave him instructions. He has not been cited for other misconduct (encl. 2G-2H).
- This is § 87(2)(b) first CCRB complaint (encl. 3).

Civilian Statements

Complainant/Victim

§ 87(2)(b) (encl. 5)

- After § 87(2)(b) first opened the door, Det. Hickey tried to enter but § 87(2)(b) blocked the doorway with his body, stepped into the hallway, and shut his apartment door behind him.
- In the hallway, Det. Hickey told § 87(2)(b) he was investigating an allegation of child abuse and that he wanted to come inside. § 87(2)(b) told Det. Hickey he needed a warrant, turned around, and opened his door to enter his apartment.
- Det. Hickey pushed § 87(2)(b) in the back and followed him into the apartment.

- § 87(2)(b) faced Det. Hickey, and Det. Hickey pushed him in the chest and backed him up against a pool table.
- Det. Hickey allegedly told § 87(2)(b) “I’m in your apartment now, what the fuck are you going to do? I’ll take your fucking kids from you. I’ll have you locked up.”
- Det. Hickey told § 87(2)(b) “Sit the fuck down,” and after § 87(2)(b) sat on a couch, Det. Hickey allegedly told him, “Don’t fucking move.”
- § 87(2)(b) § 87(2)(b) -old son, § 87(2)(b) was in the home. Det. Hickey walked into the back of the home to speak with § 87(2)(b)
- Det. Tillotson entered the home behind Det. Hickey. One of the officers called for more officers and Sgt. Gonzalez and PO Brunson arrived and walked inside the apartment while Det. Hickey spoke to § 87(2)(b)
- Sgt. Gonzalez asked § 87(2)(b) where § 87(2)(b) was and § 87(2)(b) told Sgt. Gonzalez that § 87(2)(b) was with his mother in downtown Brooklyn.
- § 87(2)(b) told Sgt. Gonzalez that he should put Det. Hickey on a leash, and Sgt. Gonzalez allegedly responded to § 87(2)(b) “I should put you in handcuffs,” for not knowing where § 87(2)(b) was.
- Sgt. Gonzalez told § 87(2)(b) there would be back and the officers left.
- On Oct. 29, 2013, § 87(2)(b) went to the 77th Precinct stationhouse and provided a lieutenant with medical paperwork § 87(2)(b)

Witness

§ 87(2)(b) (encl. 6)

- When § 87(2)(b) answered the door, Det. Hickey told him he needed to inspect the apartment and check on the children. § 87(2)(b) insisted that Det. Hickey could not enter, and so Det. Hickey and § 87(2)(b) spoke in the hallway.
- When § 87(2)(b) opened the door to come back inside, Det. Hickey was pushing him to enter the apartment. Det. Hickey allegedly pushed § 87(2)(b) into a chair. § 87(2)(b) stood back up, and Det. Hickey pushed him against a pool table and then told him, “Sit the fuck down.”
- § 87(2)(b)’s infant child was in the home. § 87(2)(b) picked him up and walked into a back room. There was also a § 87(2)(b) -old in the apartment.
- Det. Hickey entered the room and asked § 87(2)(b) for his name, his parents’ names, and asked him if he knew why the officers were there.
- Sgt. Gonzalez and PO Bunson arrived and § 87(2)(b) told the officers that § 87(2)(b) was with his mother and not in the apartment. The officers then left while saying they may come back later.
- § 87(2)(b) was not in the front room when the additional officers arrived.

NYPD Statements

Subject Officer: DET. JOSEPH HICKEY (encl. 9)

- Det. Hickey did not make memo book entries about this incident (encl. 7).
- Based on Det. Hickey’s DD5s (encl. 8), the complaint report for § 87(2)(b) was generated on Oct. 21, 2013, and the case was assigned to Det. Hickey on Oct. 23, 2013.
- On Oct. 27, 2013, Det. Hickey went to § 87(2)(b) home without a warrant to investigate the § 87(2)(b)
- When § 87(2)(b) opened the door, Det. Hickey observed from the hallway beer bottles inside the apartment and two toddlers on the floor.
- Det. Hickey asked § 87(2)(b) if he could come inside so that the neighbors would not hear, but § 87(2)(b) stepped into the hallway and closed the door behind him.

- Det. Hickey told § 87(2)(b) he wanted to see § 87(2)(b) but § 87(2)(b) told him no and that he could not enter without a warrant.
- § 87(2)(b) walked back into his apartment. § 87(2)(b) tried to close the door, and Det. Hickey blocked the door from closing with his foot and arms.
- § 87(2)(b) told Det. Hickey, “Get the fuck out of my apartment,” and to get away from his door.
- When Det. Hickey did not let § 87(2)(b) close the door, § 87(2)(b) took a fighting stance and advanced toward Det. Hickey.
- Before § 87(2)(b) touched Det. Hickey, Det. Hickey pushed § 87(2)(b) backward and stepped inside the apartment.
- Det. Hickey entered the apartment because he felt that § 87(2)(b) was out of control; he wanted to control the situation; he did not know if § 87(2)(b) was inside; he wanted to know where § 87(2)(b) was; and he wanted to know if there were other children in the apartment. Det. Hickey thought that § 87(2)(b) may have been intoxicated, that the situation was an emergency, and § 87(2)(b) was in no condition to be alone with children.
- Once inside, Det. Hickey told § 87(2)(b) to, “Sit the fuck down” to gain control of the situation. § 87(2)(b) complied and the situation then calmed down.
- Det. Hickey denied using further force against § 87(2)(b) cursing at him, threatening to arrest him, or hearing Sgt. Gonzalez threaten to arrest § 87(2)(b).
- Not until the situation had calmed down was Det. Hickey able to speak with § 87(2)(b) and § 87(2)(b) and determine that § 87(2)(b) was not in the home.

Subject Officer: DET. JOSEPH TILLOTSON (encl. 11)

- Det. Tillotson did not make memo book entries about this incident (encl. 10).
- Det. Tillotson corroborated that § 87(2)(b) was uncooperative in the hallway, that § 87(2)(b) cursed at Det. Hickey, and that from the hallway he could see small children and beer bottles inside the apartment.
- § 87(2)(b) walked away abruptly and tried to close the door, but Det. Hickey blocked the door from closing.
- Det. Hickey moved backward and Det. Tillotson assumed that § 87(2)(b) had pushed him. Det. Hickey pushed § 87(2)(b) and entered the apartment.
- Det. Tillotson did not observe Det. Hickey use further force against § 87(2)(b) did not recall if Det. Hickey cursed at § 87(2)(b) and did not hear any officer threaten to arrest § 87(2)(b).
- Det. Tillotson could not recall if Det. Hickey told § 87(2)(b) to “Sit the fuck down,” but said it was possible that Det. Hickey said that because of the tense nature of the situation.
- After entering the apartment, § 87(2)(b) told the officers that § 87(2)(b) was with his mother, and the officers left.

Subject Officer: SGT. EGIDIO GONZALEZ (encl. 13)

- Sgt. Gonzalez did not make memo book entries about this incident (encl. 12).
- When Sgt. Gonzalez arrived, § 87(2)(b) was sitting down on a couch.
- Sgt. Gonzalez did not witness any of the allegations concerning Det. Hickey, and Sgt. Gonzalez denied threatening to arrest § 87(2)(b).

Subject Officer: PO JASON BRUNSON (encl. 15)

- PO Brunson did not make memo book entries about this incident (encl. 14).
- PO Brunson’s statement was consistent with Sgt. Gonzalez’s, in that he did not witness any of the allegations.

Findings and Recommendations

Allegation A – Abuse of Authority: Det. Joseph Hickey entered § 87(2)(b) in Brooklyn.

It is undisputed that Det. Hickey was assigned the case on October 23, 2013, and he arrived at the home without a warrant on Oct. 27, 2013, with Det. Tillotson. It is undisputed that Det.

Hickey and Det. Tillotson came to § 87(2)(b) home § 87(2)(b)

§ 87(2)(b) It is undisputed that upon arrival Det. Hickey took the lead. It is undisputed that § 87(2)(b) § 87(2)(b) refused entry to the officers and that Det. Hickey pushed § 87(2)(b) and gained entry into the apartment.

Det. Hickey and Det. Tillotson said that at the doorway Det. Hickey explained to § 87(2)(b) that he wanted to see his son and that § 87(2)(b) cursed at the detectives and told them they could not see his son or enter. When § 87(2)(b) had the door open, the detectives could see a 40-ounce beer bottle and two toddlers and thought that § 87(2)(b) may be intoxicated. Det. Hickey and Det. Tillotson said that § 87(2)(b) tried to shut the door on Det. Hickey, but Det. Hickey blocked the door with his body. Det. Hickey said that § 87(2)(b) took a fighting stance and advanced at him, but before § 87(2)(b) reached him, he pushed § 87(2)(b) and entered the home.

Det. Hickey said he entered the apartment because he felt that § 87(2)(b) was out of control; he wanted to control the situation; he did not know if § 87(2)(b) was inside; he wanted to know where § 87(2)(b) was; and he wanted to know if there were other children in the apartment. Det. Hickey thought that § 87(2)(b) may have been intoxicated, that the situation was an emergency, and that § 87(2)(b) was in no condition to be alone with children. After Sgt. Gonzalez arrived, Det. Hickey learned from § 87(2)(b) and § 87(2)(b) that § 87(2)(b) was not at the home.

In the absence of consent or a warrant, the police are permitted to enter a home under the emergency doctrine if there are reasonable grounds to believe that there is an emergency at hand and an immediate need for assistance for the protection of life or property. People v. Dallas 8 N.Y.3d 890 (2007) (encl. 1A-1B).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A be substantiated.**

Allegation B – Force: Det. Joseph Hickey used physical force against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that Det. Hickey pushed § 87(2)(b) to enter his home and pushed him up against a pool table, from which he said he sustained a bruised shoulder.

Det. Hickey stated that § 87(2)(b) assumed a fighting stance and advanced at him at the doorway, and Det. Hickey stated he pushed § 87(2)(b) before § 87(2)(b) reached him. Det. Tillotson assumed that § 87(2)(b) pushed Det. Hickey at the doorway because Det. Hickey moved backward. Afterward, Det. Hickey pushed § 87(2)(b) Det. Hickey and Det. Tillotson stated that the extent of Det. Hickey's force was to push § 87(2)(b) at the doorway.

When Sgt. Gonzalez and PO Brunson arrived, Det. Hickey and Det. Tillotson were already inside and § 87(2)(b) was sitting down.

Patrol Guide Section 203-11 indicates that an officer can use the minimum amount of force necessary to overcome resistance (encl. 1-C).

§ 87(2)(g)

it is recommended that **Allegation B be unsubstantiated.**

Allegation C – Discourtesy: Det. Joseph Hickey spoke rudely to § 87(2)(b)

It is undisputed that Det. Hickey told § 87(2)(b) to “Sit the fuck down.” § 87(2)(b) further alleged that Det. Hickey told him, “I’m in your apartment now, what the fuck are you going to do? I’ll take your fucking kids from you,” and, “Don’t fucking move.” § 87(2)(b) did not allege these further profanities.

Det. Hickey and Det. Tillotson denied the use of further profanity.

Patrol Guide Section 203-09 indicates that officers must speak to members of the public with courtesy and respect (encl. 1-D).

§ 87(2)(g)

it is recommended that **Allegation C be substantiated.**

Allegation D – Abuse of Authority: Det. Joseph Hickey threatened to arrest § 87(2)(b)

Allegation E – Abuse of Authority: Sgt. Egidio Gonzalez threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that Det. Hickey told him, “I’ll have you locked up,” and § 87(2)(b) alleged that Sgt. Gonzalez told him, “I should put you in handcuffs.”

Det. Hickey and Sgt. Gonzalez denied making these statements, and the additional officers denied having heard these statements.

§ 87(2)(b) did not allege the statements were made but may have been in a different room in the home when they were said.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations D and E be unsubstantiated.**

§ 87(4-b), § 87(2)(g)

Team: Strike

Investigator: _____ Daniel Casados _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date